

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arthur Albano	Team: Team # 3	CCRB Case #: 201309737	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 01/05/2013 6:07 PM	Location of Incident: Inside the 70th Precinct stationhouse.	18 Mo. SOL 7/5/2014	Precinct: 70		
Date/Time CV Reported Tue, 10/15/2013 2:05 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Tue, 10/15/2013 2:05 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Steve Richards	02946	937372	070 PCT
2. SGT Winston Willabus	03104	935969	070 PCT
3. POM Jason Rosciano	09915	939371	070 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christophe Donohue	09014	943182	070 PCT
2. POM Michael Foder	17145	946997	070 PCT
3. POF Samantha Sturman	01789	947521	070 PCT
4. POM Brian Flynn	30217	945190	070 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Winston Willabus	Abuse: Sgt. Winston Willabus authorized the strip-search of § 87(2)(b)	A . Exonerated
§ 87(4-b) § 87(2)(g)		

Case Summary

On October 15, 2013, § 87(2)(b) filed this complaint via mail with the Civilian Complaint Review Board (CCRB).

On January 5, 2013, at 6:07 p.m., § 87(2)(b) was arrested for § 87(2)(b) and taken to the 70th Precinct stationhouse. The following resulted because of this interaction:

- **Allegation A- Abuse of Authority- Sgt. Winston Willabus authorized the strip search of § 87(2)(b)**

§ 87(2)(g)

- § 87(2)(g), § 87(4-b)

Results of Investigation

Civilian Statement

Complainant/ Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of the incident. He is a § 87(2)(b), black man with brown hair and brown eyes.

CCRB Statement:

On November 14, 2013, § 87(2)(b) was interviewed at § 87(2)(b) on Rikers Island, and provided the following statement (encl. 5A-E).

On the date and time of the incident, § 87(2)(b) was standing in front of a laundromat in front of § 87(2)(b) and § 87(2)(b) in Brooklyn, with a crowd of about 15 people.

While at that corner, a friend of his, § 87(2)(b) approached him, shook hands with § 87(2)(b) and the two then walked in opposite directions.

§ 87(2)(b) walked approximately two blocks from his original location, and between § 87(2)(b) and § 87(2)(b) on § 87(2)(b) a marked police van pulled up to the curb beside § 87(2)(b) and a plainclothes officer asked him if he had anything on him. § 87(2)(b) was frisked around his arms, chest, waistband, and legs. An officer entered his pockets and found inside, two wallets, and about \$30 of mixed bills folded once inside his front pocket. While this was happening, PO2 was searching in the general vicinity of § 87(2)(b) including behind a tree. § 87(2)(b) was then handcuffed by his arresting officer, later determined through the arrest report to be PO Steve Richards of the 70th Precinct, and placed inside the unmarked van. Inside the van was § 87(2)(b) who told § 87(2)(b) that he was arrested moments before. § 87(2)(b) asked the officers why he was being arrested and PO1 stated, “Don’t worry about it, you’ll find out when you get to the stationhouse.” § 87(2)(b) stated that there were no civilians in the vicinity that would have witnessed his interaction with the officers.

At the 70th Precinct stationhouse, § 87(2)(b) met an officer, determined through investigation to be Sgt. Winston Willabus. § 87(2)(b) arresting officers and another officer were told by Sgt. Willabus to strip search § 87(2)(b).

§ 87(2)(b) was taken into the bathroom and PO Richards gave the commands to § 87(2)(b) an unidentified officer stood behind PO Richards and Sgt. Willabus supervised the search. § 87(2)(b) was told to remove his clothing, one piece at a time, including his coat, shirts, jeans, and shoes, until he was completely nude. Then § 87(2)(b) was told to open his hands, show the bottom of his feet, and was told to bend over.

NYPD Statements:

Subject Officer: SGT. WINSTON WILLABUS

- Sgt. Willabus was § 87(2)(b) old at the time of the incident. He is a § 87(2)(b), Hispanic man with black hair and brown eyes.
- On the date of the incident, Sgt. Willabus was scheduled to work 12:00 p.m. to 8:57 p.m. as the SNEU Sergeant. with PO Richards. Sgt. Willabus was in uniform and utilized a marked sedan.

Memo Book-

Sgt. Willabus’ Memo Book states “17:15 Set I/V/O § 87(2)(b) and § 87(2)(b) 17:39 92 @ F/O § 87(2)(b) § 87(2)(b) 18:07 92 @ § 87(2)(b) and § 87(2)(b) § 87(2)(b) 18:08 end set.” (encl. 8A-B).

CCRB Statement:

Sgt. Willabus appeared at the CCRB on January 16, 2014 and provided the following statement (encl. 8C-D).

Sgt. Willabus was presented with a photograph of § 87(2)(b) and stated that he knew § 87(2)(b) from this date and at least two previous arrests. Sgt. Willabus stated that § 87(2)(b) has been compliant with officers in his previous arrests. In prior arrests, Sgt. Willabus had

discovered marijuana from the van § 87(2)(b) has been transported to the precinct in, after a search was conducted on the scene of the arrest. Sgt. Willabus assigned the additional marijuana to § 87(2)(b) because the location of the marijuana corresponded to his seating in the van. Sgt. Willabus took this information to believe that § 87(2)(b) was concealing evidence on these prior occasions. Sgt. Willabus does not recall if § 87(2)(b) has been strip-searched in previous arrests.

Sgt. Willabus was presented with a photograph of a laundromat on § 87(2)(b) and stated that it was at that location that § 87(2)(b) usually conducts drug transactions.

At the time of the incident, Sgt. Willabus was the 70th Precinct SNEU supervisor in a parked RMP with PO Richards when he received a call over the radio for a hand to hand transaction between § 87(2)(b) and § 87(2)(b). Over the radio, Sgt. Willabus was given a description of the two subjects including age and race, as well as the direction in which they were headed. Sgt. Willabus stated that the officers at the observation post do not indicate to Sgt. Willabus the quality of the observation made of the hand to hand transaction, however, he stated that PO Flynn as well as the other observation post officers are trained to identify when a drug transaction is committed and the arresting officer makes the arrest based on their conclusions of their observations.

Sgt. Willabus arrested § 87(2)(b) first, in front of § 87(2)(b). Sgt. Willabus was presented with the Arrest Report of § 87(2)(b). Sgt. Willabus does not have an independent recollection of § 87(2)(b) throwing any evidence, onto the street, or any marijuana being unable to be recovered at the scene of § 87(2)(b) arrest for any reason. Soon thereafter, § 87(2)(b) was apprehended in the vicinity of § 87(2)(b) and § 87(2)(b).

Sgt. Willabus stated that when § 87(2)(b) was brought back to the stationhouse and after all other prisoners were lodged, § 87(2)(b) was brought to the bathroom where PO Richards and himself conducted the strip-search. § 87(2)(b) was asked to remove his clothing one piece at a time, and each article was searched one by one, until there is no more clothing to go through. Afterwards, § 87(2)(b) was given all of his clothing back to put back on.

Sgt. Willabus stated that the primary reason for § 87(2)(b) being strip-searched was the fact that § 87(2)(b) had previously secreted contraband on his person. Sgt. Willabus also recalls that an officer that transported § 87(2)(b) had brought to Sgt. Willabus' attention, that § 87(2)(b) was making movements within the van that was suggestive of concealing something. Sgt. Willabus stated that, procedurally, § 87(2)(b)'s person would be searched to recover any evidence or weapons at the arrest location. Sgt. Willabus stated that although he does not recall if evidence was found at the arrest location, negative results of this search would be considered in the justification for strip-searching § 87(2)(b). Sgt. Willabus confirmed that there were no additional factors that led him to believe that § 87(2)(b) was concealing evidence.

Subject Officer: PO JASON ROSCIANO

- PO Rosciano was § 87(2)(b) old at the time of the incident. He is a § 87(2)(b), white man, with brown hair and brown eyes.
- On the date of the incident, PO Rosciano was scheduled to work from 8:00 a.m. to 6:35 p.m. as part of the 67th Precinct SNEU team. He was assigned to the prisoner van with PO Foder, and PO Sturman, and he was in uniform.

Memo Book:

PO Rosciano does not have any memo book entries regarding this incident (encl.11A-B).

CCRB Statement:

PO Rosciano appeared at the CCRB on January 30, 2014, and provided the following statement (encl. 11C-D).

PO Rosciano was a part of the SNEU team prisoner van on the date of the incident, but did not have any independent recollection of arrests for § 87(2)(b) or § 87(2)(b). PO Rosciano was presented with the Arrest Reports of § 87(2)(b) and § 87(2)(b), which did not refresh his memory as to the circumstances of the arrest.

PO Rosciano was presented with a photograph of the location in which the alleged drug transaction was made. PO Rosciano had stated that he knew the area, because it was a location known for drug transactions. PO Rosciano stated that he knew of marijuana, crack cocaine, and heroine being sold at that area. He had made arrests in that location before, as well as members of his team, and within the precinct. A photograph of § 87(2)(b) was presented to PO Rosciano. PO Rosciano stated that he recognized § 87(2)(b) as a drug dealer, known within the precinct, and knew that § 87(2)(b) had been arrested at the previously depicted location for drug transactions.

PO Rosciano does recall transporting arrestees to the stationhouse during his tour, but did not independently recall the circumstances of those arrests or how many arrestees he transported. PO Rosciano does not specifically recall transporting § 87(2)(b) to the stationhouse on the incident date. PO Rosciano does not recall observing any suspicious movement of any arrestees in the prisoner van that day, and did not recall believing anyone of them was concealing evidence. PO Rosciano did not recall any officers making any statements about any arrestees' movements within the Prisoner van. PO Rosciano did not recall any strip searches being performed of any arrestees on the incident date.

PO Rosciano does not recall § 87(2)(b) being strip-searched on any arrest prior to this date, and does not recall any instances in which § 87(2)(b) was concealing evidence. PO Rosciano does not recall finding any evidence inside the prisoner van after § 87(2)(b) had been removed from it during this arrest or any previous arrest.

PO Rosciano did not recall seeing any arrestee throwing marijuana or anything onto the street on the incident date. He does not recall any officer relaying to him any difficulties in collecting evidence on the scene of the arrest on the date of the incident.

Subject Officer: PO STEVE RICHARDS

- *PO Richards was § 87(2)(b) old at the time of the incident. He is a § 87(2)(b) black man with black hair and brown eyes.*
- *On January 5, 2013, PO Richards was scheduled to work from 12:00 p.m. to 8:35 p.m. with the Precinct Street Narcotics Enforcement Unit (SNEU), along with Sgt. Willabus in a marked RMP sedan.*

Arrest Report #§ 87(2)(b) :

§ 87(2)(a) 160.50

Arrest Report § 87(2)(b)

§ 87(2)(a) 160.50

Memo Book:

“14:45- SNEU Sets- OP- PO Flynn/ Donohue, TL- Sgt. Willabus/ Richards, PV- PO Foder, PO Samantha Sturman, PO Rosciano, 17:15- Set S/V/O § 87(2)(b) and § 87(2)(b) 19:45 84 @ 70 Prisoner Logged, 20:45- Complete Online 61 Arrest for § 87(2)(b) (encl. 6H-I)

CCRB Statement:

PO Richards appeared at the CCRB on December 17, 2013, and provided the following statement (encl. 6J-K)

PO Richards did not have an independent recollection of any part of the arrest of § 87(2)(b) including any strip search that was conducted. A photograph of § 87(2)(b) was presented to PO Richards, who recalled § 87(2)(b) from prior arrests, but did not recall interacting with § 87(2)(b) on the date of the incident. PO Richards stated that § 87(2)(b) is a known drug dealer within the precinct, and he has personally been involved on several arrests of § 87(2)(b) acting as a lookout. PO Richards was also presented a Google Maps street view photograph of the arrest location. PO Richards stated that he has made about 50 arrests at the depicted corner, but did not remember interacting with § 87(2)(b) on that corner.

PO Richards was assigned to work with Sgt. Willabus, the SNEU supervisor, and would be involved in observing individuals involved with the purchase and sale of narcotics. PO Richards stated that the officers assigned to the observation post, PO Flynn and PO Donohue, would be responsible for observing the sale of drugs. When the officers then arrest the individuals, if no drugs are found, and the officers know that an individual has a large quantity of marijuana because they have seen them dealing drugs for a long period of time, it is reasonable to believe that there are other drugs in the immediate location, or the individual is concealing additional drugs.

PO Richards was the arresting officer at the time of the incident, and stated that he would sometimes be responsible in telling Sgt. Willabus and the desk sergeant. at the time of the incident the circumstances of the arrest and between them, the decision would be made to strip search any arrestees, and if there is any disagreement between the supervisors, they would contact their duty captain for a final decision. PO Richards knows from his team members that § 87(2)(b) has been arrested multiple times in the 70th Precinct for drug sales within the 70th Precinct. He stated that in certain situations, an arrestee like § 87(2)(b) who is believed to have a large access of marijuana available to him, may be strip searched if he was observed selling drugs and subsequent searches of his person yielded no additional marijuana. PO Richards does not recall if § 87(2)(b) made any physical movements indicative of concealing evidence, at the point during his apprehension.

Witness Officer: PO MICHAEL FODER

- PO Michael Foder was § 87(2)(b) old at the time of the incident. He is a § 87(2)(b), white man with brown hair and brown eyes.
- On the date of the incident, PO Foder was scheduled to work from 12:00 p.m. to 8:35 p.m. assigned to Prisoner Van# 8745 with PO Sturman and PO Rosciano, as part of a 70th Precinct SNEU team.

Memo Book:

“17:39- 92@ § 87(2)(b) (§ 87(2)(b) 18:07- 92@ § 87(2)(b) and § 87(2)(b) . § 87(2)(b) (encl. 7A-B).

CCRB Statement:

PO Foder appeared at the CCRB on January 10, 2014, and provided the following statement (encl. 7C-D)

PO Foder did not have an independent recollection of the incident. PO Foder was inside the prisoner van, and stated that he usually drives. PO Foder was presented with a photograph of § 87(2)(b) and stated that he recognized § 87(2)(b) as a known marijuana dealer within the 70th Precinct. He has been a part of teams that have arrested § 87(2)(b) prior to this incident, and is aware of other arrests from members of his team of drug related offenses with § 87(2)(b) PO Foder was presented a photograph of the location of the alleged marijuana transaction. He stated that the location was known for drug transactions, and that he and members of his team have made drug arrests at that location before.

PO Foder stated that he does not usually pick up arrestees, but rather, arrestees are brought to him at a location, away from the arrest location. PO Foder did not recall if § 87(2)(b) made any physical movements, while inside the prisoner van, that would have suggested that he was concealing evidence.

PO Foder was presented with a copy of the vouchers for § 87(2)(b) He stated that he is responsible for inputting information into the system, and just because the voucher lists him as the “finder,” it does not suggest that he initially recovered the evidence. PO Foder stated that he did not witness the strip search of § 87(2)(b) and does not recall if § 87(2)(b) has been strip-searched in the past.

Witness Officer: PO SAMANTHA STURMAN

- PO Sturman was § 87(2)(b) old at the time of the incident. She is a § 87(2)(b) Hispanic woman with brown hair and hazel eyes.
- On the date of the incident, PO Sturman was scheduled to work from 12:00 p.m. to 8:35 p.m. in a marked prisoner van (#8745), in uniform with PO Rosciano and PO Foder.

Memo Book:

PO Sturman’s memo book states, “17:15- set i/v/o § 87(2)(b) and § 87(2)(b) 17:39- 92 @ § 87(2)(b) . (§ 87(2)(b) 18:07- 92@ § 87(2)(b) and § 87(2)(b) § 87(2)(b) 19:45- 84@ Pct. van toss negative for contraband.” (encl. 10A-B)

CCRB Statement:

PO Sturman appeared at the CCRB on January 28, 2014, and provided the following statement (encl. 10C-D).

PO Sturman was assigned to the prisoner van at the time of the incident. PO Sturman did not have an independent recollection of the arrest of § 87(2)(b) and § 87(2)(b). She did not recall any events of the day, including the fact of whether § 87(2)(b) was strip-searched at the stationhouse. PO Sturman was presented with a photograph of § 87(2)(b) who she stated that she recognized due to multiple arrests in the same area of the incident location. PO Sturman stated that § 87(2)(b) is a known drug dealer, she has been part of SNEU teams that have arrested § 87(2)(b) in the past, and § 87(2)(b) is known within the 70th Precinct to be a drug dealer.

Procedurally, § 87(2)(b) would be brought to the van by the arresting officer. The prisoner van would be parked at a location, away from the scene of the arrest. PO Sturman does not recall seeing § 87(2)(b) or § 87(2)(b) being arrested. PO Sturman was shown a copy of § 87(2)(b) arrest report and asked if she observed § 87(2)(b) throwing marijuana or anything onto the street at any point during this incident. PO Sturman denied seeing § 87(2)(b) doing so. PO Sturman does not recall transporting § 87(2)(b) in the prisoner van, and does not recall § 87(2)(b) or any prisoner moving in the van, or anything notable at all happening within the van. PO Sturman does not recall in prior arrests, if § 87(2)(b) had moved, or seemed to be concealing evidence. PO Sturman is unsure if § 87(2)(b) had been strip-searched before this arrest. PO Sturman does not recall if contraband or other evidence had been found in the prisoner van, after § 87(2)(b) was transported to the precinct in prior arrests.

PO Sturman did not find any contraband after completing a search of the prisoner van after § 87(2)(b) was taken into the precinct. PO Sturman was not aware of any strip searches conducted of § 87(2)(b) subsequent to his arrest on this date.

Witness Officer: PO BRIAN FLYNN

- PO Flynn was § 87(2)(b) old at the time of the incident. He is a § 87(2)(b) white man with blonde hair and blue eyes.
- On the date of the incident, PO Flynn was scheduled to work from 12:00 p.m. to 8:35 p.m. as the SNEU observation post with PO Donohue in plainclothes and on foot.

Memo Book:

PO Flynn's memo book notes: "17:15 – Set I/V/O § 87(2)(b) and § 87(2)(b) 17:39- 92@ § 87(2)(b) § 87(2)(b) 18:07- 92@ § 87(2)(b) and § 87(2)(b) § 87(2)(b) (encl. 9A-B)

CCRB Statement:

PO Flynn appeared at the CCRB on January 16, 2014 and provided the following statement (encl. 9C-D).

PO Flynn was assigned to the observation post with PO Donohue at § 87(2)(b) and § 87(2)(b). PO Flynn described his responsibilities as to observe and report any drug transactions to the arresting officer. PO Flynn did not have an independent recollection of the exact observations of the hand to hand transaction between § 87(2)(b) and § 87(2)(b). However he did recall radioing his observation to PO Richards who made the arrest. PO Flynn did not see § 87(2)(b) throwing evidence on the street, or discarding any evidence before being arrested.

PO Flynn had no knowledge of any strip search conducted of § 87(2)(b).

Witness Officer: PO CHRISTOPHER DONOHUE

- PO Donohue was § 87(2)(b) old at the time of the incident. He is a § 87(2)(b) white man with brown hair and hazel eyes.
- On the date of the incident, PO Donohue was scheduled to work from 12:00 p.m. to 8:35 p.m. as part of the 70th Precinct SNEU team. PO Rosciano was assigned to an observation post with PO Flynn, on foot, and in plainclothes.

Memo Book:

PO Donohue's memo book notes "17:39- 92 @ § 87(2)(b) . (§ 87(2)(b) 18:07- 92@ § 87(2)(b) § 87(2)(b) § 87(2)(b) (encl. 12A-B).

CCRB Statement:

PO Donohue appeared at the CCRB on February 5, 2014 and provided the following statement (encl. 12C-D).

PO Donohue did not make any observations leading to § 87(2)(b) or § 87(2)(b) arrest. PO Donohue was not informed of the observations made by PO Flynn. PO Donohue was not aware of any strip searches performed of § 87(2)(b) or any arrestee on the date of the incident.

PO Donohue was presented with a photograph of § 87(2)(b) PO Donohue did not recognize § 87(2)(b) from the photograph, however he knew from the 70th Precinct, through intelligence gathering that § 87(2)(b) is a frequent drug dealer. PO Donohue was presented with a photograph of the location of the alleged drug transaction and stated that it was a known drug prone location, where multiple arrests have been made for transactions that occurred in front of, inside or in the vicinity of the depicted location.

PO Donohue was presented with the arrest reports of § 87(2)(b) and § 87(2)(b) PO Donohue stated that the observations noted in the arrest reports were not familiar to him. PO Donohue was directed to the narrative of § 87(2)(b) arrest report. He did not recall seeing any arrestee throw marijuana or any object onto the street on the date of the incident.

NYPD Documents

NYPD Booking Arraignment Disposition System (BADS)

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) (encl. 13A-D).

Roll Call

The 70th Precinct Roll Call for January 5, 2013 confirms that Sgt. Willabus, PO Richards, PO Rasciano, PO Sturman, PO Donohue, PO Foder and PO Flynn were all scheduled to work at the time of the incident (encl. 14A-I).

Vouchers #§ 87(2)(b) § 87(2)(b) and § 87(2)(b)

Vouchers related to the arrest of § 87(2)(b) show that \$94.00 of U.S. currency was vouchered as arrest evidence, and § 87(2)(b) Cell phone, gloves, and jewelry was vouchered for safe keeping (encl. 16A-F).

Command Log

The Command Log for January 5, 2013, notes the arrest of § 87(2)(b) and § 87(2)(b) with PO Richards as the arresting officer. There is no note of any strip searches conducted of § 87(2)(b) (encl. 15A-F).

Summons/Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of January 5, 2014 with regard to the incident, nine months past the 90 day filing period.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- § 87(2)(b) has filed the following CCRB complaint: § 87(2)(b)

Subject Officers CCRB History

- Sgt. Winston Willabus has been a member of the service for nine years and there is one substantiated CCRB allegation against him for detention of an individual. Sgt. Willabus received no disciplinary action as the department was unable to prosecute (encl. 2A-B).
- PO Steve Richards has been a member of service for nine years § 87(2)(g), § 87(4-b) (encl. 2D-E).
- PO Jason Rosciano has been a member of the service for eight years and there are no substantiated CCRB allegations against him. (encl. 2C).

Conclusion

Allegations not pleaded:

§ 87(2)(a) 160.50

§ 87(2)(g)

Investigative Findings and Recommendations

Identification of subject officers

Sgt. Winston Willabus and PO Steve Richards admit to arresting § 87(2)(b) at the time of the incident. PO Rosciano's participation in the SNEU set responsible for § 87(2)(b) arrest was confirmed by all of the officers interviewed in regards to this incident.

Allegation A- Abuse of Authority- Sgt. Winston Willabus authorized the strip-search of

§ 87(2)(b)

All officers interviewed in this case, other than Sgt. Willabus, had stated that they did not have an independent recollection of any of the facts to this case. § 87(2)(g)

According to § 87(2)(b) he was taken to the 70th Precinct stationhouse, where he was strip searched by PO Richards and Sgt. Willabus with negative results. Sgt. Willabus corroborates that § 87(2)(b) was strip searched at the stationhouse by PO Richards and himself. It is undisputed that no marijuana was found on either § 87(2)(b) or § 87(2)(b) as a result of this arrest and all subsequent searches. According to § 87(2)(b) the lack of marijuana found was attributable to the fact that § 87(2)(b) and § 87(2)(b) were not engaged in drug related activities. The arrest report for the co-defendant § 87(2)(b) notes that “marijuana was thrown on the street causing arresting officer to be unable to recover it.” Sgt. Willabus did not have any recollection of marijuana being thrown on the street. Sgt. Willabus also claims that officers that were responsible for transporting § 87(2)(b) in the prisoner van had alerted him of suspicious movements inside of the van that suggested that § 87(2)(b) was concealing additional evidence. No officers assigned to the prisoner van recall the circumstances of the transport of § 87(2)(b) to the stationhouse.

Before an arrestee may be lawfully subjected to a strip search, the *Fourth Amendment* requires an individualized “reasonable suspicion that an arrestee is concealing weapons or other contraband based on the crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest. To establish reasonable suspicion the officer must point to specific objective facts and rational inferences that they are entitled to draw from those facts in light of their experience. The standard requires individualized suspicion, specifically directed to the person who is targeted for the strip search. United States of America v. Gonzalez (2009) (encl. 1D-I)

Other factors used to determine the reasonableness of a strip search are the nature of the crime charged, the known history of an arrestee concealing narcotics, and the suspicious fidgeting of the arrestee. United States of America v. Freedman (2012) (encl. 1J-O)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]

§ 87(2)(g) [Redacted]
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§ 87(2)(g), § 87(4-b) [Redacted]
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Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date